

Ram Dularey v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 11 July 2013 · WRIT - C No. 37103 of 2013 · **Writ dismissed; petitioner relegated to clause 6.5 complaint.**

HEADNOTE

A writ seeking quash of a September 2012 electricity bill was dismissed because the consumer had an appropriate complaint under clause 6.5 of the U.P. Electricity Supply Code, 2005, which he was left free to file.

FACTUAL SUMMARY

Ram Dularey invoked the writ jurisdiction of the Allahabad High Court to quash his electricity bill for September 2012. The State of Uttar Pradesh and the other respondents appeared through standing counsel and licensee counsel. They did not join issue on the correctness of the bill. Their only submission was that the petitioner had an appropriate complaint available under the Supply Code. No particulars of the disputed units, meter, or tariff were placed on the record of this short hearing.

HOLDING-UNITS

INTERPLAY · UP-2005::6.5

clause 6.5 complaint as alternative to writ for bill quash

HOLDING

A writ to quash a monthly electricity bill will not be entertained where the consumer has an appropriate complaint under clause 6.5 of the U.P. Electricity Supply Code, 2005; the petition is dismissed with liberty to file that complaint. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE SEPTEMBER 2012 ELECTRICITY BILL

The Court did not examine the bill on merits and left the consumer to the clause 6.5 complaint. ¶ 1